

Finally, with regards to the claims against Goodleap, LLC ("Goodleap"). Goodleap has not been served. The court therefore has no jurisdiction over Goodleap. Accordingly, the motion to compel arbitration with regards to Defendant's claims is granted, Plaintiffs' claims against Defendant are stayed pending arbitration, and, pursuant to Code of Civil Procedure section 1281.2, Plaintiffs' claims against Goodleap are stayed pending the arbitration.

Tentative Ruling

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Tentative Ruling

Re: **Voorhees v. Alvarado, et al.**
Superior Court Case No. 26CECG00219

Hearing Date: September 3, 2026 (Dept. 502)

Motion: by Defendants Sanger Unified School District, Jeremy Alvarado, and Wilson Elementary School Demurring to the Complaint and to Strike Portions of the Complaint

Tentative Ruling:

To overrule the demurrer to the entire complaint. (Code Civ. Proc., § 430.10, subd. (e).)

To sustain the demurrer to the fourth cause of action, with leave to amend. (Code Civ. Proc., § 430.10, subd. (e).)

To strike the prayer for pre-judgment interest, with leave to amend. (Code Civ. Proc., § 436; Civ. Code, §§ 3287; 3288.)

To strike the prayer for exemplary damages as to defendants Sanger Unified School District and Wilson Elementary School only. (Code Civ. Proc., § 436; Gov't. Code, § 818.)

Plaintiff is granted 20 days' leave to file the First Amended Complaint. The time in which the complaint can be amended will run from service by the clerk of the minute order. All new allegations in the First Amended Complaint are to be set in **boldface** type.

Explanation:

Demurrer to the Fourth Cause of Action

Defendants Sanger Unified School District, Jeremy Alvarado, and Wilson Elementary School, demur to the fourth cause of action for intentional infliction of emotional distress on the ground that plaintiff failed to plead compliance with the Government Tort Claims Act prior to filing her complaint. (Govt. Code §§ 815, subd. (a); 911.2; 950.2; 954.4.)

Plaintiff does not dispute that she failed to plead timely compliance with the Government Tort Claims Act. However, she contends that defendant Alvarado was not acting in the scope of his employment with the school district when he allegedly discriminated against and harassed her, so she was not required to bring a tort claim before filing her suit.

“Ordinarily, the determination whether an employee has acted within the scope of employment presents a question of fact; it becomes a question of law, however, when ‘the facts are undisputed and no conflicting inferences are possible.’ ” (*Lisa M. v. Henry Mayo Newhall Memorial Hospital* (1995) 12 Cal.4th 291, 299 citing *Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 213.)

Although plaintiff argues that the categorization of an employee’s action as within or outside the scope of employment is a question of fact and thus, would generally be inappropriate on demurrer, plaintiff has alleged no facts to support the determination that Alvarado was not acting within the scope of his employment. In particular, all of the comments Alvarado is alleged to have made are in reference to plaintiff’s age and retirement. (Compl., ¶ 10a.) All of these comments were made on school property. (*Id.*, at ¶ 10b.) It is also alleged that Alvarado gave plaintiff negative evaluations, because the school district instructed him to do so. (*Id.*, at ¶¶ 10k, 10bb.) Similarly, plaintiff alleges that she believes Alvarado’s motivation for the write-up falsely accusing her of causing harm to a child, was to push her out of her role due to her age. (*Id.* at ¶ 10s.) Plaintiff’s retirement is not otherwise alleged to benefit Alvarado in anyway other than for the benefit of his employer. Accordingly, there are no allegations to suggest that Alvarado was not acting within the scope of his employment when he conducted these acts. Therefore, the demurrer to the fourth cause of action is sustained, with leave to amend.

Demurrer to the Entire Complaint

Defendants further demur to the entirety of the complaint on the ground that defendant Wilson Elementary School has been improperly joined as a party to this action, because it is not a separate legal entity. However, defendants base this information on facts that are not pled or judicially noticeable, which is inappropriate on demurrer. Grounds for the motion must appear on the face of the challenged pleading or on facts, which the court may judicially notice. (*Saltarelli & Steponovich v. Douglas* (1995) 40 Cal.App.4th 1, 5.) Therefore, the demurrer on this ground is overruled.

Motion to Strike

A motion to strike can be used to cut out any irrelevant, false or improper matters or a demand for judgment requesting relief not supported by the allegations of the complaint. (Code Civ. Proc., § 436.) A motion to strike is the proper procedure to challenge an improper request for relief, or improper remedy, within a complaint. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166-167.)

Defendants move to strike the portions of the complaint referencing punitive damages and the prayer for the same and pre-judgment interest. Plaintiff concedes that punitive damages are barred against public entities and therefore, proceeds to seek punitive damages against Alvarado individually only.

With respect to punitive damage allegations, mere legal conclusions of oppression, fraud or malice are insufficient (and hence improper) and therefore may be stricken. (*G.D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 29-30.)

- *Punitive Damages*

To support punitive damages, the complaint must allege ultimate facts of the defendant's oppression, fraud, or malice. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255.) Evidentiary facts are not required. "[A]bsent an intent to injure the plaintiff, 'malice' requires more than a willful and conscious disregard of the plaintiff's interests. The additional component of 'despicable conduct' must be found." (*College Hosp. Inc. v. Superior Court* (1994) 8 Cal.4th 704, 725.) "Despicable" conduct is defined as "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." (*Ibid.*) Such conduct has been described as "having the character of outrage frequently associated with crime." (*Tomaselli v. Transamerica Ins. Co.* (1994) 25 Cal.App.4th 1269, 1287; *Cloud v. Casey* (1999) 76 Cal.App.4th 895, 912.)

A claim may be supported by showing "despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) To establish conscious disregard, "the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences." (*Taylor v. Superior Court* (1979) 24 Cal.3d 890, 908, italics omitted.)

Here, plaintiff alleges that Alvarado engaged in a series of conduct in an effort to push her out of her employment due to her age. Plaintiff alleges that Alvarado made multiple comments about her age and retirement, failed to provide her with necessary evaluations, gave her unwarranted negative evaluations, and falsely accused her and wrote her up for causing physical harm to a child. (See Compl., ¶ 10.) At least at the pleading stage, these allegations are sufficient to survive a motion to strike. Therefore, the punitive damages are stricken as to the public entity defendants only.

- *Pre-judgment Interest*

If the sum owed plaintiff is certain or capable of being made certain by calculation, plaintiff is entitled as a matter of law to prejudgment interest. (Civ. Code, § 3287, subd. (a).) If the claim is based upon a cause of action in contract where the claim is unliquidated, the court has discretion to award plaintiff prejudgment interest, but from no earlier than the date the cause of action was filed. (Civ. Code, § 3287, subd. (b).) For all other actions not arising from contract, and in every case of oppression, fraud, or malice, interest may be given in the discretion of the jury. (Civ. Code, § 3288.) However, the award of prejudgment interest pursuant to Civil Code section 3288 "represents the accretion of wealth which money or particular property could have produced during a period of loss." (*Curtis v. State of California ex rel. Dept. of Transportation* (1982) 128 Cal.App.3d 668, 686.)

Plaintiff's damages based on the allegations are not readily subject to precise calculation, and therefore, prejudgment interest is not warranted here. Plaintiff contends that she is reserving the right to seek pre-judgment interest on any liquidated damage components of her claim, but fails to identify any such damages or plead any such allegations that would give rise to such damages. Therefore, the prayer for pre-judgment interest is stricken with leave to amend.

